

Multiple Choice

1. **Answer:** D

Options: A) When the applicant is in the custody of the state; B) Where the state must investigate claims against it; C) The development of a legal framework to protect those within the state; D) To provide housing for all those homeless within a state

Note: The correct answer is based on the understanding that the European Court of Human Rights has not recognized an explicit positive obligation for states to provide housing for all homeless individuals, as such responsibilities typically fall under social and economic rights rather than strictly enforced human rights.

2. **Answer:** B

Options: A) Fairness is a relative term.; B) The legal system is, in fact, unfair.; C) It sets a bad example.; D) The law is irrational and ambiguous.

Note: The argument that the legal system is, in fact, unfair effectively challenges the 'fair play' premise by highlighting that if the legal system does not operate justly for all individuals, the obligation to obey its laws becomes morally questionable.

3. **Answer:** C

Options: A) There are fundamental differences between individual women.'; B) Men and women have different conceptions of the feminist project.'; C) Women look to context, whereas men appeal to neutral, abstract notions of justice.'; D) Men are unable to comprehend their differences from women.'

Note: The correct answer highlights the fundamental difference in perspectives between women and men in difference feminism, emphasizing that women prioritize contextual and relational understanding of justice, while men tend to favor objective, abstract principles.

4. **Answer:** D

Options: A) The language of the law is generally unclear.; B) Lawyers' arguments usually concern language.; C) Judges are prey to linguistic misunderstanding.; D) The rule of recognition cannot fully account for legal validity.

Note: Dworkin's 'semantic sting' argues that the rule of recognition alone fails to capture the complexities of legal interpretation and the moral dimensions that influence the determination of legal validity.

5. **Answer:** D

Options: A) Hobbes; B) Locke; C) Thomas Aquinas; D) Rousseau

Note: Rousseau posits that the social contract is a theoretical framework used to understand the legitimacy of political authority and the origins of societal organization, rather than a literal event in history.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: The Critical Legal Studies School critiques traditional legal doctrines and emphasizes the role of power dynamics and social justice in legal decision-making rather than prioritizing market efficiency.

7. **Answer:** True

Options: A) True; B) False

Note: Hobbes believed that natural law arises from the inherent social nature of humans, who are driven by self-preservation and the need to coexist peacefully in society, thus necessitating the establishment of social contracts and governance.

8. **Answer:** False

Options: A) True; B) False

Note: Monism asserts that international law and domestic law form a unified legal system, but it does not inherently claim that international law is superior to domestic laws, as it recognizes the coexistence and integration of both legal frameworks within a state.

9. **Answer:** False

Options: A) True; B) False

Note: A consequentialist justification of punishment focuses on the outcomes and benefits of punishment, such as deterrence and rehabilitation, rather than strictly matching the severity of the punishment to the severity of the crime, which is more aligned with retributive theories.

10. **Answer:** False

Options: A) True; B) False

Note: The rise of Fascism in the early 20 th century was characterized by authoritarianism and the rejection of natural law principles, which emphasized universal rights and moral standards, rather than promoting their revival.

Long Form Response

11. **Answer:** Tom Regan's concept of 'sentimental anthropomorphism' asserts that humans often project their emotions and experiences onto animals, leading to a deeper understanding of their intrinsic value. This perspective underpins the argument for animal rights by emphasizing that animals possess inherent worth, which entitles them to live their lives free from exploitation and harm. Regan argues that recognizing this worth affirms animals' autonomy, as they have interests and experiences that deserve respect. Thus, the moral consideration of animals is not merely a matter of human sentiment but a recognition of their right to exist as autonomous beings, reinforcing the legal and ethical framework for animal rights. This foundational belief challenges

traditional views that prioritize human interests over those of non-human animals, advocating for a more inclusive approach to rights under constitutional law.

Note: correct because it effectively connects Tom Regan's idea of 'sentimental anthropomorphism' to the recognition of animals' intrinsic value and autonomy, thereby supporting the argument for their rights against exploitation.

12. **Answer:** The postmodernist project critiques the Kantian focus on individual rights, equality, and justice by rejecting the notion that these concepts can be universally applied in a way that is neutral and objective. Postmodernists argue that the emphasis on individualism overlooks the complexities of social identities and power dynamics, which can lead to the marginalization of certain groups. They contend that the Kantian framework, while aiming for equality, often fails to account for the historical and cultural contexts that shape legal interpretations and the lived experiences of individuals. Consequently, postmodernism advocates for a more pluralistic approach to constitutional law that recognizes the diverse voices and narratives within society, challenging the idea that a singular conception of rights and justice can adequately address the complexities of contemporary legal issues.

Note: correct because it identifies the postmodernist critique of Kantian individualism as failing to acknowledge the complexities of social identities and power dynamics, thereby highlighting the limitations of a universal application of rights, equality, and justice in constitutional law.